**Shipper**
DAESHIN METAL MFG. CO., LTD
PO BOX 374 FREE TRADE ZONE
104, JAYUMUYEOK2-GIL, MASANHOEWON-GU
CHANGWON-CITY, KYUNGNAM, KOREA

**COPY**

Sea Waybill No.
SEL0558924A

Consol Ref. CKR334301
Reference No. SSEL0558924

**NON-NEGOTIABLE**

# COMBINED TRANSPORT SEA WAYBILL

Based on BIMCO COMBICONWAYBILL

**Consigned (not to Order)**
FISHER CONTROLS INTERNATIONAL LLC
301 SOUTH 1ST AVENUE
MARSHALLTOWN, MA 50158,
USA

Carrier:

DSV Air & Sea Inc.
dba DSV Ocean Transport
200 Wood Avenue South
Suite 300
Iselin, New Jersey USA 08830
FMC License No: 17331 NF

**Notify party/address**
FISHER CONTROLS INTERNATIONAL LLC
4725 HIGHWAY 75 SOUTH
SHERMAN, TEXAS 75090
USA

| Pre-carriage by | Place of Receipt |
|---|---|
| | BUSAN, KOREA |
| **Ocean Vessel** | **Port of loading** |
| GEORG MAERSK / 636E | BUSAN, KOREA |
| **Port of discharge** | **Place of Delivery** |
| LOS ANGELES, UNITED STATES | DALLAS, UNITED STATES |

**SCAC: HLCU**

Original Bill of Lading - Surrendered at Origin

| Freight Payable at | Number of original Sea Waybills |
|---|---|
| DESTINATION | 0 (ZERO) |

| Marks and Numbers | Number and kind of Packages | Description of Goods | Gross Weight | Measurement |
|---|---|---|---|---|
| FISHER CONTROLS INTERNATIONAL LLC<br>4725 HIGHWAY 75 SOUTH<br>SHERMAN, TEXAS 75090<br>USA<br>Ricky Page<br>T.1-903-868-3261<br>PACK NO : 6 BOX<br>COUNTRY OF SMELT :<br>KOREA<br>COUNTRY OF CAST : KOREA<br>VALUE OF ALUMINUM :<br>$2.84 / KG<br>WEIGHT OF ALUMINUM :<br>2.92 KG | 6 Package(s) | STC :<br><br>VALVE PARTS<br><br>INVOICE NO. DSM2609-EM01 | 936.000 KG | 4.074 M3 |

| Container | Seals | Type | Packages | Mode | Weight | Volume |
|---|---|---|---|---|---|---|
| HAMU2879465 | HLC1488518 | 40HC | 6 PKG | CFS/CFS | 936.000 KG | 4.074 M3 |

INCOTERM: EXW

SHIPPED ON BOARD 10-SEP-26

**Particulars above declared by Shipper**

Freight and charges
FREIGHT COLLECT

**RECEIVED the goods in apparent good order and condition and, as far as ascertained by reasonable means of checking, as specified above unless otherwise stated.**

**The Carrier, in accordance with and to the extent of the provisions contained in this Bill of Lading, and with liberty to sub-contract, undertakes to perform and/or in his own name to procure performance of the combined transport and the delivery of the goods, including all services related thereto, from the place and time of taking the goods in charge to the place and time of delivery, and accepts responsibility for such transport and such services.**

For delivery of goods please apply to:
DSV Air & Sea Inc. - I902
12430 NW 25th Street
Suite 100
Miami FL 33182
United States

Phone: +13054776800

Shipper's declared value of …..

subject to payment of above extra charge

**Note:**
The Merchant's attention is called to the fact that according to Clauses 10 to 12 and Clause 24 of this Bill of Lading, the liability of the Carrier is, in most cases, limited in respect of loss or damage to the goods and delay.

T - 3015 (udg. 12.02)

Place and date of issue
SEOUL 10-Sep-26

Signed For

**DSV Air & Sea Inc. dba DSV Ocean Transport**

by **DSV Air & Sea Ltd.**

.....

As agents to carrier

p.t.o.

# COMBINED TRANSPORT SEA WAYBILL

**Code Name: "COMBICONWAYBILL"**

## I. GENERAL PROVISIONS

1. **Applicability**.
Notwithstanding the heading "Combined Transport", the provisions set out and referred to in this Sea Waybill shall also apply, if the transport as described in this Sea Waybill is performed by one mode of transport only.

2. **Definitions**.
"Carrier" means the party on whose behalf this Sea Waybill has been signed.
"Merchant" includes the Shipper, the Receiver, the Consignor, the Consignee and the owner of the goods.

3. **Carrier's Tariff**.
The terms of the Carrier's applicable Tariff at the date of shipment are incorporated herein. Copies of the relevant provisions of the applicable Tariff are available from the Carrier upon request. In the case of inconsistency between this Sea Waybill and the applicable Tariff, this Sea Waybill shall prevail.

4. **Time Bar**.
All liability whatsoever of the Carrier shall cease unless suit is brought within 9 months after delivery of the goods or the date when the goods should have been delivered.

5. **Law and Jurisdiction**.
Disputes arising under this Sea Waybill shall be determined by the courts and in accordance with the law at the place where the Carrier has his principal place of business.

## II. PERFORMANCE OF THE CONTRACT

6. **Methods and Routes of Transportation**.
(1) The Carrier is entitled to perform the transport and all services related thereto in any reasonable manner and by any reasonable means, methods and routes.
(2) In accordance herewith, for instance, in the event of carriage by sea, vessels may sail with or without pilots, undergo repairs, adjust equipment, drydock and tow vessels in all situations.

7. **Optional Stowage**.
(1) Goods may be stowed by the Carrier by means of containers, trailers, transportable tanks, flats, pallets, or similar articles of transport used to consolidate goods.
(2) Containers, trailers, transportable tanks and covered flats, whether stowed by the Carrier or received by him in a stowed condition from the Merchant, may be carried on or under deck without notice to the Merchant.

8. **Hindrances etc. Affecting Performance**.
(1) The Carrier shall use reasonable endeavours to complete the transport and to deliver the goods at the place designated for delivery.
(2) If at any time the performance of the contract as evidenced by this Sea Waybill is or will be affected by any hindrance, risk, delay, difficulty or disadvantage of whatsoever kind, and if by virtue of sub-clause 8 (1) the Carrier has no duty to complete the performance of the contract, the Carrier (whether or not the transport is commenced) may elect to:
(a) treat the performance of this Contract as terminated and place the goods at the Merchant's disposal at any place which the Carrier shall deem safe and convenient; or
(b) deliver the goods at the place designated for delivery.
(3) If the goods are not taken delivery of by the Merchant within a reasonable time after the Carrier has called upon him to take delivery, the Carrier shall be at liberty to put the goods in safe custody on behalf of the Merchant at the latter's risk and expense.
(4) In any event the Carrier shall be entitled to full freight for goods received for transportation and additional compensation for extra costs resulting from the circumstances referred to above.

## III. CARRIER'S LIABILITY

9. **Basic Liability**.
(1) The Carrier shall be liable for loss of or damage to the goods occurring between the time when he receives the goods into his charge and the time of delivery.
(2) The Carrier shall be responsible for the acts and omissions of any person of whose services he makes use for the performance of the contract of carriage evidenced by this Sea Waybill.
(3) The Carrier shall, however, be relieved of liability for any loss or damage if such loss or damage arose or resulted from:
(a) The wrongful act or neglect of the Merchant.
(b) Compliance with the instructions of the person entitled to give them.
(c) The lack of, or defective conditions of packing in the case of goods which, by their nature, are liable to wastage or to be damaged when not packed or when not properly packed.
(d) Handling, loading, stowage or unloading of the goods by or on behalf of the Merchant.
(e) Inherent vice of the goods.
(f) Insufficiency or inadequacy of marks or numbers on the goods, covering, or unit loads.
(g) Strikes or lock-outs or stoppages or restraints of labour from whatever cause whether partial or general.
(h) Any cause or event which the Carrier could not avoid and the consequence whereof he could not prevent by the exercise of reasonable diligence.
(4) Where under sub-clause 9 (3) the Carrier is not under any liability in respect of some of the factors causing the loss or damage, he shall only be liable to the extent that those factors for which he is liable under this Clause have contributed to the loss or damage.
(5) The burden of proving that the loss or damage was due to one or more of the causes or events, specified in (a), (b) and (h) of sub-clause 9 (3) shall rest upon the Carrier.
(6) When the Carrier establishes that in the circumstances of the case, the loss or damage could be attributed to one or more of the causes or events, specified in (c) to (g) of sub-clause 9 (3), it shall be presumed that it was so caused. The Merchant shall, however, be entitled to prove that the loss or damage was not, in fact, caused either wholly or partly by one or more of the causes or events.

10. **Amount of Compensation**
(1) When the Carrier is liable for compensation in respect of loss of or damage to the goods, such compensation shall be calculated by reference to the value of such goods at the place and time they are delivered to the Merchant in accordance with the contract or should have been so delivered.
(2) The value of the goods shall be fixed according to the commodity exchange price or, if there be no such price, according to the current market price or, if there be no commodity exchange price or current market price, by reference to the normal value of goods of the same kind and quality.
(3) Compensation shall not, however, exceed two Special Drawing Rights per kilogramme of gross weight of the goods lost or damaged.
(4) Higher compensation may be claimed only when, with the consent of the Carrier, the value for the goods declared by the Shipper which exceeds the limits laid down in this Clause has been stated on the face of this Sea Waybill at the place indicated. In that case the amount of the declared value shall be substituted for that limit.

11. **Special Provisions for Liability and Compensation**
(1) Notwithstanding anything provided for in Clauses 9 and 10 of this Sea Waybill, if it can be proved where the loss or damage occurred, the Carrier and the Merchant shall, as to the liability of the Carrier, be entitled to require such liability to be determined by the provisions contained in any international convention or national law, which provisions:
(a) cannot be departed from by private contract, to the detriment of the claimant, and
(b) would have applied if the Merchant had made a separate and direct contract with the Carrier in respect of the particular stage of transport where the loss or damage occurred and received as evidence thereof any particular document which must be issued if such international convention or national law shall apply.
(2) Insofar as there is no mandatory law applying to carriage by sea by virtue of the provisions of sub-clause 11 (1), the liability of the Carrier in respect of any carriage by sea shall be determined by the International Brussels Convention 1924 as amended by the Protocol signed at Brussels on February 23rd 1968 – The Hague/Visby Rules. The Hague/Visby Rules shall also determine the liability of the Carrier in respect of carriage by inland waterways as if such carriage were carriage by sea. Furthermore, they shall apply to all goods, whether carried on deck or under deck.

12. **Delay, Consequential Loss, etc.**
(1) The Carrier shall not be liable in any capacity, whatsoever, for any delay, non-delivery, misdelivery or other loss or damage to or in connection with the Goods occurring at any time contemplated under Clause 9 (1).
(2) If the Carrier is held liable for delay, non-delivery, misdelivery or other loss or damage to or in connection with the Goods as described above in subdivision 1, such liability shall in no case exceed the freight for the transport covered by this document.

13. **Notice of Loss of or Damage to the Goods**
(1) Unless notice of loss of or damage to the goods, specifying the general nature of such loss or damage, is given in writing by the Merchant to the Carrier when the goods are handed over to the Merchant, such handing over is *prima facie* evidence of the Delivery by the Carrier of the goods as described in this Sea Waybill.
(2) Where the loss or damage is not apparent, the same *prima facie* effect shall apply if notice in writing is not given within three (3) consecutive days after the day when the goods were handed over to the Merchant.

14. **Defences and Limits for the Carrier, Servants, etc**.
(1) The defences and limits of liability provided for in this Sea Waybill shall apply in any action against the Carrier for loss or damage to the goods whether the action can be founded in contract or in tort.
(2) The Carrier shall not be entitled to the benefit of the limitation of liability provided for in sub-clause 10 (3), if it is proved that the loss or damage resulted from a personal act or omission of the Carrier done with intent to cause such loss or damage or recklessly and with knowledge that damage would probably result.
(3) The Merchant undertakes that no claim shall be made against any servant, agent or other persons whose services the Carrier has used in order to perform this Contract and if any claim should nevertheless be made, to indemnify the Carrier against all consequences thereof.
(4) However, the provisions of this Sea Waybill apply whenever claims relating to the performance of this Contract are made against any servant, agent or other person whose services the Carrier has used in order to perform this Contract, whether such claims are founded in contract or in tort. In entering into this Contract, the Carrier, to the extent of such provisions, does so not only on his own behalf but also as agent or trustee for such persons. The aggregate liability of the Carrier and such persons shall not exceed the limits in Clauses 10, 11 and 24, respectively.

## IV. DESCRIPTION OF GOODS

15. **Carrier's Responsibility**.
The information in this Sea Waybill shall be *prima facie* evidence of the taking in charge by the Carrier of the goods as described by such information unless a contrary indication, such as "shipper's weight, load and count", "Shipper-packed container" or similar expressions, have been made in the printed text or superimposed on the Sea Waybill. As between the Carrier and Consignee the information in the Sea Waybill shall be conclusive evidence of receipt of the goods as so stated and proof to the contrary shall not be permitted provided always that the Consignee has acted in good faith.

16. **Shipper's Responsibility**.
The Shipper shall be deemed to have guaranteed to the Carrier the accuracy, at the time the goods were taken in charge by the Carrier, of the description of the goods, marks, number, quantity and weight, as furnished by him, and the Shipper shall defend, indemnify and hold harmless the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars. The right of the Carrier to such indemnity shall in no way limit his responsibility and liability under this Sea Waybill to any person other than the Shipper. The Shipper shall remain liable even if the goods have been delivered.

17. **Shipper-packed Containers, etc.**
(1) If a container has not been filled, packed or stowed by the Carrier, the Carrier shall not be liable for any loss of or damage to its contents and the Merchant shall cover any loss or expense incurred by the Carrier, if such loss, damage or expense has been caused by:
(a) negligent filling, packing or stowing of the container;
(b) the contents being unsuitable for carriage in container; or
(c) the unsuitability or defective condition of the container unless the container has been supplied by the Carrier and the unsuitability or defective condition would not have been apparent upon reasonable inspection at or prior to the time when the container was filled, packed or stowed.
(2) The provisions of sub-clause (1) of this Clause also apply with respect to trailers, transportable tanks, flats and pallets which have not been filled, packed or stowed by the Carrier.
(3) The Carrier does not accept liability for damage due to the unsuitability or defective condition of reefer equipment or trailers supplied by the Merchant.

18. **Dangerous Goods**.
(1) The Merchant shall comply with all internationally recognised requirements and all rules which apply according to national law or by reason of international Convention, relating to the carriage of goods of a dangerous nature, and shall in any event inform the Carrier in writing of the exact nature of the danger before goods of a dangerous nature are taken into charge by the Carrier and indicate to him, if need be, the precautions to be taken.
(2) Goods of a dangerous nature which the Carrier did not know were dangerous, may, at any time or place, be unloaded, destroyed, or rendered harmless, without compensation; further, the Merchant shall be liable for all expenses, loss or damage arising out of their handing over for carriage or of their carriage.
(3) If any goods shipped with the knowledge of the Carrier as to their dangerous nature shall become a danger to any person or property, they may in like manner be landed at any place or destroyed or rendered innocuous by the Carrier without liability on the part of the Carrier except to General Average, if any.

19. **Return of Containers**
(1) For the purpose of this Clause the Consignor shall mean the person who concludes this Contract with the Carrier and the Consignee shall mean the person entitled to receive the goods from the Carrier.
(2) Containers, pallets or similar articles of transport supplied by or on behalf of the Carrier shall be returned to the Carrier in the same order and condition as handed over to the Merchant, normal wear and tear excepted, with interiors clean and within the time prescribed in the Carrier's tariff or elsewhere.
(3) (a) The Consignor shall be liable for any loss of, damage to, or delay, including demurrage, of such articles, incurred during the period between handing over to the Consignor and return to the Carrier for carriage.
(b) The Consignor and the Consignee shall be jointly and severally liable for any loss of, damage to, or delay, including demurrage, of such articles, incurred during the period between handing over to the Consignee and return to the Carrier.

## V. FREIGHT AND LIEN

20. **Freight**.
(1) Freight shall be deemed earned when the goods have been taken in charge by the Carrier and shall be paid in any event.
(2) The Merchant's attention is drawn to the stipulations concerning currency in which the freight and charges are to be paid, rate of exchange, devaluation and other contingencies relative to freight and charges in the relevant tariff conditions. If no such stipulation as to devaluation exists or is applicable the following shall apply:
If the currency in which freight and charges are quoted is devalued between the date of the freight agreement and the date when the freight and charges are paid, then all freight and charges shall be automatically and immediately increased in proportion to the extent of the devaluation of the said currency.
(3) For the purpose of verifying the freight basis, the Carrier reserves the right to have the contents of containers, trailers or similar articles of tranport inspected in order to ascertain the weight, measurement, value, or nature of the goods.

21. **Lien**
The carrier and his agent (as named on the reverse side of this document) shall have a lien on the goods and any documents relating thereto, for any amount due to them, at any time from the merchant including the costs of recovering same, and may enforce such lien in any reasonable manner including sale or disposal of the goods.

## VI. MISCELLANEOUS PROVISIONS

22. **General Average**.
(1) General Average shall be adjusted at any port or place at the Carrier's option, and to be settled according to the York-Antwerp Rules 1994, or any modification thereof, this covering all goods, whether carried on or under deck. The New Jason Clause as approved by BIMCO to be considered as incorporated herein.
(2) Such security including a cash deposit as the Carrier may deem sufficient to cover the estimated contribution of the goods and any salvage and special charges thereon, shall, if required, be submitted to the Carrier prior to delivery of the goods.

23. **Both-to-Blame Collision Clause**.
The Both-to-Blame Collision Clause as adopted by BIMCO shall be considered incorporated herein.

24. **U.S. Trade**
(1) In case the contract evidenced by this Sea Waybill is subject to the Carriage of Goods by Sea Act of the United States of America, 1936 (U.S. COGSA), then the provisions stated in the said Act shall govern before loading and after discharge and throughout the entire time the goods are in the Carrier's custody.
(2) If the U.S. COGSA applies, and unless the nature and value of the goods have been declared by the shipper before the goods have been handed over to the Carrier and inserted in this Sea Waybill, the Carrier shall in no event be or become liable for any loss of or damage to the goods in an amount exceeding USD 500 per package or customary freight unit.